

The Civil Rights Movement

In the 1950s and 1960s, many African Americans began an organized fight for their rights as citizens, or **civil rights**. The civil rights movement resulted in the passage of several new federal and state laws that have increased the rights not only of African Americans but also of all citizens.

Discrimination

Up to the 1960s, many state laws, particularly in the southern states, denied African Americans the same rights as other Americans. These laws allowed the states to practice **discrimination**, or unfair and less equal treatment toward a particular group. Some states, for example, forced African American students to attend separate schools and colleges. African Americans were required to ride in the back of buses and sit in separate sections in theaters and restaurants. They also had to use separate public rest rooms and water fountains and even stay at separate hotels.



Martin Luther King, Jr. Martin Luther King, Jr., led many nonviolent protests against racial discrimination. *What rights did the civil rights movement win for all Americans?*

The Civil Rights Act

The civil rights struggle resulted in the Civil Rights Act of 1964. This act gave African Americans equal protection under the law, as guaranteed in the Constitution. The act banned discrimination against African Americans in employment, voting, and public accommodations. This law, enacted to protect one group, also expanded the rights of everyone. It banned discrimination not only by race and color but also by sex, religion, or national origin.

The Voting Rights Act

The Voting Rights Act of 1965 empowered the federal government to intervene in places where African Americans were discriminated against in voter registration. Although the Fifteenth Amendment to the Constitution gave African American males the right to vote, that right was not well enforced. By the

1960s, several states had found ways, such as the poll tax, to discourage African Americans from registering and voting. Since the passage of the Voting Rights Act, African American voter registration has risen sharply. The law has also helped Hispanic Americans and other minorities register to vote.

Affirmative Action

New federal laws have also helped expand our rights through affirmative action. **Affirmative action** means taking special steps to help minorities and women gain access to jobs and opportunities that were denied them in the past because of discrimination. According to federal law, governments must apply affirmative action to give priority to hiring and promoting women and minorities in certain areas.

Affirmative action was meant to be only a temporary, short-term means of helping minorities and women reach the same economic levels as white males. Some affirmative action programs, however, have existed for more than 20 years. In recent years, the Supreme Court has begun to interpret affirmative action cases more strictly.

Equal Protection

The Fourteenth Amendment to the Constitution reaffirmed the principle of due process and established the idea of equal protection under the law. It did much more than that, however. It made the Constitution and the Bill of Rights apply not only to federal laws, but to state laws as well.

This meant that every citizen of the United States had the same rights as every other citizen. It also meant that if people felt their rights had been violated

by a state or local law, they could take their complaint to a federal court, which could overturn the state or local law. This extension of federal laws to the state and local levels is called the nationalization of the Bill of Rights.

The most famous example of how the nationalization of the Bill of Rights helped expand American rights is the case of *Brown v. Board of Education of Topeka, Kansas* in 1954. In 1896 the Supreme Court had ruled that “separate but equal” public facilities for African Americans and whites were legal. The Court reversed that decision in the *Brown* case. It held that **segregation** in schools—that is, separating students because of race—was unconstitutional because it violated the Fourteenth Amendment’s principle of equal protection under the law.

In the *Brown* case, the Court decided that separate schools could never be truly equal and therefore were illegal. As a result of this interpretation of the Constitution, no state or public school district can maintain separate schools for children of different races.

★ SECTION 1 REVIEW ★

UNDERSTANDING VOCABULARY

Define civil rights, discrimination, affirmative action, segregation.

REVIEWING OBJECTIVES

- 1 What are the three major categories of rights?
- 2 Why are our rights as Americans limited?
- 3 What gains did the civil rights movement of the 1960s win for all Americans?